



U.S. Department
of Transportation

Research and
Special Programs
Administration

DOT-E 9900
(FIRST REVISION)

13 OCT 1989

1. Natico, Inc., Chicago Illinois, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to manufacture, mark, and sell the packaging described in paragraph 7 below for use in the transportation of certain hazardous materials described in paragraph 3 below in commerce subject to the requirements specified herein. This exemption authorizes the manufacture, marking and sale of a non-DOT specification fiber drum conforming to a DOT Specification 21C, except that the top or cover is constructed of high density polyethylene, for the shipment of materials now authorized in DOT 21C fiber drums, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Natico, Incorporated's application dated December 18, 1987, and May 3, 1989, submitted in accordance with 49 CFR 107.103 and 49 CFR 107.105 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Those hazardous materials (solids) presently authorized to be packaged in a DOT Specification 21C fiber drum (subject to compatibility with polyethylene head specified).

4. PROPER SHIPPING NAME (49 CFR 172.101). The specific chemical name or generic description, as appropriate.

5. REGULATION AFFECTED. 49 CFR 178.224-1; 49 CFR Part 173, insofar as authorization of materials in DOT 21C drum is concerned.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, and cargo vessel.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a non-DOT specification fiber drum conforming to a DOT Specification 21C except that the top or cover is constructed of injection-molded high density polyethylene, with concentric corrugation and having a minimum thickness of 0.090-inch, with a steel locking band, as shown in Drawing No. CV-145A-B included in petitioner's application. The polyethylene top or cover design incorporates a self-sealing feature in lieu of a gasket. Authorized gross weight may not exceed 400 pounds. Drums, closed as for shipment, must be capable of satisfactorily withstanding the performance tests prescribed in 49 CFR 178.224-2.

8. SPECIAL PROVISIONS.

a. Shippers may use the packaging(s) covered by this exemption pursuant to 49 CFR 173.22a.

b. A copy of this exemption must be carried aboard each motor vehicle and vessel used to transport packages covered by this exemption.

c. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which this packaging is manufactured, and made available to a representative of the Department upon request.

d. Each packaging manufactured in accordance with the requirements of this exemption must be marked in a manner which identifies the physical location (city and state) of the facility at which it is manufactured.

e. Each drum must be marked as specified in 49 CFR 178.224-4 except that "DOT-E 9900" must be substituted for "DOT-21C".

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Office of Hazardous Materials Transportation (OHMT) as soon as practicable.

10. EXPIRATION DATE. May 31, 1990.

Issued at Washington, D.C:


Alan I. Roberts
Director
Office of Hazardous Materials
Transportation

13 OCT 1989

DATE

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: USCG, FHWA, FRA